

TENTATIVE RULING

Lisa Clontz v. Mimi Park (25CV005153)

Defendant's Motions to:

1. **Revoke Plaintiff's Fee Waiver**
2. **Vacate Judgement Pursuant to Code of Civil Procedure section 473(d)**
3. **Strike Memorandum of Costs or in the Alternative, to Tax Costs**

Motion 1: Defendant's Motion to Revoke Plaintiff's Fee Waiver

By this motion, Defendant requests that the Court revoke its prior grant of Plaintiff's request for waiver of fees. The Motion to Revoke Plaintiff's Fee Waiver is **DENIED**. There is no authority cited for a party to file a noticed motion regarding an opposing party's fee waiver. See Government Code §68632.

Motion 2: Defendant's Motion to Vacate Judgment Pursuant to Code of Civil Procedure section 473(d)

The court, on its own motion pursuant to California Code of Civil procedure section 473(d), strikes from the Notice of Entry of Sister-State Judgment issued by this court on October 7, 2025, the inclusion of "InstaMommies, Inc.", leaving "Mimi Park" as the sole judgment debtor. The Texas Judgment attached to the Application for Entry of Judgment on Sister-State Judgment does not clearly include in the judgment language that Defendant InstaMommies, Inc. was to be responsible for the \$40,000 judgment against Defendant Mimi Park. The Clerk is directed to (1) correct the record and (2) reissue the Notice of Entry of Judgment on Sister-State Judgment. This order is made without prejudice to the submission of a corrected or amended Judgment from the Texas Court should plaintiff convince that court of an error in the judgment language and that the judgment does include InstaMommies, Inc. Upon such submission, clerk may re-issue the Sister-State Judgment to include InstaMommies, Inc.

Motion 3: Defendant's Motion to Strike Memorandum of Costs or in the Alternative, to Tax Costs

By this motion, Defendant seeks an order striking Plaintiff's Memorandum of Costs filed on 6/5/26 in its entirety, or in the alternative, taxing the claimed costs to \$0 or to such amount as the court finds properly recoverable. The Motion to Strike Memorandum of Costs is **DENIED**. The Memorandum of Costs was timely filed. See California Rule of Court 3.1700. The Alternative Motion to Tax Costs is **GRANTED**. Plaintiff withdraws a \$40.00 writ charge and that amount is therefore taxed. Plaintiff submitted proof of actual costs incurred for service of process in the amount of \$125.00, so the excess amount claimed of \$55.00 is taxed. The recoverable costs amount awarded to Plaintiff is \$125.00.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.